

25CMCV02196 25CMCV02196

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-09

Motion: DEMURRERS (1) BY HARDAT PARIAG TO PLAINTIFF'S COMPLAINT; and (2) BY HARDAT PARIAG TO DOCK WATTS, JR.'S CROSS-COMPLAINT Date: September 9, 2026 TIME: 8:30AM

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Case Number: 25CMCV02196 Hearing Date: September 9, 2026 Dept: E

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

DAISY

LEWIS, an individual,

Plaintiff,

vs.

DOCK WATTS JR., an

individual; and DOES 1 through 50, inclusive,

Defendants.

AND RELATED CROSS-COMPLAINT

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CASE NO: 25CMCV02196

[Related to Case No. 26CMCV00460]

[TENTATIVE] ORDER RE: DEMURRERS (1) BY HARDAT PARIAG TO PLAINTIFF'S COMPLAINT;
and (2) BY HARDAT PARIAG TO DOCK WATTS, JR.'S CROSS-COMPLAINT

Date:

September 9, 2026

TIME: 8:30AM

DEPT.: E

Moving Party: Defendant/Cross-Defendant

Hardat Pariag

Responding Party: Plaintiff Daisy Lewis

Cross-Complainant

Dock Watts, Jr.

Notice: Ok

Tentative

RulingS: (1) Defendant

Pariag's Demurrer to Plaintiff's Complaint is OVERRULED.

(2)

Cross-Defendant Pariag's Demurrer to Watts, Jr.'s Cross-Complaint is SUSTAINED WITH 30 DAYS' LEAVE TO AMEND.

I.

BACKGROUND

This

is a personal injury action. Plaintiff Daisy Lewis ("Lewis") alleges that, on or about March 12, 2024, she was a passenger in a vehicle which was involved in a collision with Defendant Dock Watts Jr.'s vehicle. ("Watts"). As a result of the collision, Lewis alleges that she suffered injuries to her right shoulder, upper right arm, back and left knee.

Lewis further alleges she suffers from headaches and dizziness as a result of the collision with Watts.

On

December 30, 2025, Lewis filed this action against Watts alleging one cause of action for Negligence/Negligence Per Se.

On

February 17, 2026, Watts filed a Cross-Complaint against Hardat Pariag ("Pariag") alleging causes of action for: (1) Indemnification; (2) Declaratory Relief; and (3) Apportionment of Fault.

On

March 17, 2026, Plaintiff filed two Amendments to Complaint, the first naming Pariag as Doe 1 and the second naming Lyft, Inc. as Doe 2. (See Amendments to

Complaint (Fictitious/Incorrect Name), both filed 3/17/26.)

On

April 22, 2026, Case No.: 25CMCV02196 (Lewis v. Watts, Jr.) was related to Case No.: 26CMCV00460 (Pariag v. Watts, Jr.). (See Minute Order, 4/22/26.)

On

June 5, 2026, Pariag filed the instant: (1) Demurrer to Plaintiff's Complaint; and (2) Demurrer to Watts' Cross-Complaint.

On

July 7, 2026, Plaintiff filed an Opposition.

On

July 8, 2026, Watts filed an Opposition.

On July 14, 2026, Pariag filed separate Replies in support of each Demurrer.

II.

ANALYSIS

A.

Legal

Standard

A party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc. § 430.10(e).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands,

unconnected with extraneous matters, states a cause of action.” (Hahn, *supra*, 147 Cal.App.4th at p. 747.) On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings

liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

B.

Meet and

Confer

Before

filing a demurrer, the demurring party is required to meet and confer “in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. § 430.41(a).)

1.

Pariag's

Demurrer to the Complaint

In

support of the demurrer to Plaintiff' Complaint, counsel for Pariag, Stephanie Guerra (“Guerra”) declares that on May 12, 2026, she made a good faith attempt to meet and confer with Plaintiff's counsel Eli. S. Cohen with KR Law by sending correspondence of intent to file the demurrer. (Guerra Decl., ¶ 9, Exh. G.) Guerra attests to discussing the motion with Plaintiff's counsel via teleconference on May 13, 2026, but the parties were unable to come to an agreement. (Id., ¶ 10, Exh. H.)

2.

Pariag's

Demurrer to Watts' Cross-Complaint

In

support of the demurrer to Watts' Cross-Complaint, Guerra declares that on May 22, 2026, she made a good faith attempt to meet and confer with Watts' counsel, Aubree H. Mackey by sending a correspondence indicating intent to file the demurrer. (Guerra Decl., ¶ 9, Exh. G.) Guerra attests to discussing the demurrer with Watts' counsel via teleconference, but the parties were unable to come to an agreement. (Id., ¶ 10, Exh. H.)

The

Court finds that Pariag has met the statutory meet and confer requirements as to both Demurrers.

C.

Requests for Judicial Notice ("RJN")

In

support of both his Demurrer to Plaintiff's Complaint and to Watts' Cross-Complaint, and pursuant to Evidence Code § 452, 453 and Rule of Court 3.1306, Pariag requests the Court take judicial notice of the following:

(1)

Complaint filed on December 30, 2025
(RJN, Exh. A);

(2)

Amendment to Complaint filed March
17, 2026 (RJN, Exh. B);

(3)

Los Angeles Police Department
Investigative Report dated March 12, 2024 (RJN, Exh. C);

(4)

Joint Stipulation and Order for
Arbitration and Stay of Action Between Plaintiff and Defendant Lyft, Inc. filed
and entered on May 18, 2026 (the "Joint Stipulation") (RJN, Exh. D);

(5)

Watts' Cross-Complaint against
Hardat Pariag filed on February 17, 2026 (RJN, Exh. E); and

(6)

Lyft, Inc.'s webpage entitled "US
Lyft Help / Third party requests for data" (RJN, Exh. F).

The

Court may take judicial notice of the official acts of any state, county, or federal legislative, executive, or judicial department. (Evid. Code § 452(c).) Further, the Court may also take judicial notice of the records in the instant action before the Court, or in any other action pending in the same Court, or any other court of record in the U.S. (Evid. Code § 452(d); see *Frommhamen v. Bd. of Supervisors of Santa Cruz Cnty.* (1987) 197 Cal.App.3d 1292, 1299.) The Court may also take judicial notice of facts and propositions "that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid. Code §452(h).)

The Court GRANTS Pariag's request for judicial notice of RJN, Exhs. A, B, D and E as each is a document filed with the Court which the Court may take judicial notice of pursuant to Evidence Code § 452(d). As to each RJN, Exhs. A, B, D and E, the Court does not take judicial notice of the documents for the truth of their factual contents but rather for their existence. (See *Barri v. Workers' Comp. Appeals Bd.* (2018) 28 Cal.App.5th 428, 437-438 (Court may take judicial notice of each document in a court file, but not the truth of the matters asserted in such documents).)

The Court DENIES Pariag's request

for judicial notice of RJN, Exh. C, a police report. "[A police report] is not subject to either mandatory or discretionary judicial notice under Evidence Code sections 451 or 452; it is not part of a court record under section 452, subdivision (d), nor is it a record of the "[o]fficial acts of the legislative, executive, [or] judicial departments" of the state under section 452, subdivision (c)." (*In re Marriage of Brewster & Clevenger* (2020) 45 Cal.App.5th 481, 498.) And judicial notice of the truth and accuracy of a police report is improper "because such a report is reasonably subject to dispute." (*People v. Jones* (1997) 15 Cal.4th 119, 171, fn. 17 (overruled on other grounds in *People v.*

Hill (1998) 17 Cal.4th 800.)

The

Court DENIES Pariag's request for judicial notice of RJN, Exh. F. This document is a website maintained by a third-party with no indication of how the information is compiled or maintained. The document is not one which the Court must or can take judicial notice of and it is not capable of immediate and accurate determination by resort to a source of reasonably indisputable accuracy.

D.

Pariag's

Demurrer to Plaintiff's Complaint

Pariag

demurs to Plaintiff's sole cause of action for negligence/negligence per se on the grounds that : (1) it is barred by the two-year statute of limitations;[1] (2) it fails to state facts sufficient to constitute a cause of action; and (3) it is uncertain.

Code

of Civil Procedure § 474 provides, "[w]hen the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint, or the affidavit if the action is commenced by affidavit, and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly." (Code Civ. Proc. § 474.)

Where

a complaint is amended to identify a fictitiously-named defendant after the statute of limitations has run, the amended complaint will "relate back" to and be deemed filed as of the date of the original complaint, if: (1) the original complaint stated a valid cause of action against the now-identified Doe defendant; (2) plaintiff was "genuinely ignorant" of the defendant's identity; and (3) the amended complaint is based on the same general set of facts as the original. (Austin v. Massachusetts Bonding & Ins. Co. (1961) 56 Cal.2d 596, 600-601.) Relation back effect will be given only when plaintiff was genuinely ignorant of that person's identity or liability when the action was commenced. (McClatchy v. Coblenz, Patch, Duffy & Bass, LLP (2016) 247 Cal.App.4th 368, 371-372.)

A plaintiff's requisite

"ignorance" of defendant's name has been expansively interpreted to mean either: (1) plaintiff was unaware of defendant's identity; (2) plaintiff was unaware of defendant's culpability (facts giving rise to a cause of action against the defendant); or (3) the law did not give plaintiff a right of action until after commencement of the action. (See *Marasco v. Wadsworth* (1978) 21 Cal.3d 82, 88 ("Marasco"); *Snoke v. Bolen* (1991) 235 Cal.App.3d 1427, 1431 ("Snoke").)

The relevant inquiry when the plaintiff seeks to substitute a real defendant for one sued fictitiously is what facts the plaintiff actually knew at the time the original complaint was filed. (*General Motors Corp. v. Sup.Ct.* (1996) 48 Cal.App.4th 580, 588 ("General Motors").) If the actual knowledge test is satisfied, it is irrelevant that plaintiff was negligent or failed to exercise reasonable diligence in not having discovered defendant's identity or liability earlier. A plaintiff will not be refused the right to use a Doe pleading even where the plaintiff's lack of actual knowledge is attributable to plaintiff's own negligence. (*Grinnell Fire Protection System Co. v. American Sav. & Loan Ass'n* (1986) 183 Cal.App.3d 352, 359.) Similarly, the fact that there were means by which plaintiff could have determined the identity or capacity of a "Doe" defendant when the complaint was filed is irrelevant to whether plaintiff was "ignorant" of these matters. (*General Motors*, supra, 48 Cal.App.4th at p. 581.) That the cause of action accrued earlier than the date of the Doe amendment does not affect the validity of the amendment because the Doe defendant is deemed a party from the time of commencement of the lawsuit. (*McOwen v. Grossman* (2007) 153 Cal.App.4th 937, 943.)

Finally, Code of Civil Procedure §

474 "includes an implicit requirement that a plaintiff may not 'unreasonably delay' his or her filing of a Doe amendment after learning of defendant's identity" and unreasonable delay "includes a prejudice element, which requires a showing by the defendant that he or she would suffer prejudice from plaintiff's delay in filing the Doe amendment." (*A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, 1066-1067 ("A.N.").)

Pariag

contends Plaintiff's Doe amendment is barred by the two-year statute of limitations because Plaintiff knew or reasonably should have known of his involvement from the time of the incident. Pariag argues that he filed a police report on March 12, 2024, Plaintiff was served with Watts' Cross-Complaint identifying him as a cross-defendant on February 17, 2026, and Plaintiff stipulated that she was a Lyft passenger traveling in a vehicle driven by Pariag while Pariag was utilizing the Lyft application.

Plaintiff

argues in opposition that she was truly ignorant of facts giving rise to a cause of action against Pariag's at the time of filing the original complaint, thus her March 17, 2026 amendment relates back to December 30, 2025 and is timely. Plaintiff further argues that Watts' Cross-Complaint served on February 17, 2026 was filed after Plaintiff's December 30, 2025 Complaint and cannot retroactively defeat Plaintiff's ignorance at filing.

Here,

the question is what Plaintiff knew at the time of filing her Complaint. Plaintiff admits to knowing that Pariag was her Lyft driver on the date of the accident. (Opp., p. 5:1-8.) However, that knowledge alone does not end the inquiry; as is stated above, a plaintiff's requisite "ignorance" of defendant's name has been expansively interpreted to include a situation where plaintiff was unaware of facts giving rise to a cause of action against the defendant. (See Marasco, supra, 21 Cal.3d at p. 88; Snoke, supra, 235 Cal.App.3d at p. 1431.) Thus, whether Plaintiff was aware of facts giving rise to her cause of action against Pariag is the relevant inquiry. Pariag provides the contemporaneously filed police report and the parties' May 18, 2026 Joint Stipulation as evidence of Plaintiff's knowledge, however: (1) the Court does not take judicial notice of the contents of the police report; and (2) even if the Court were to take judicial notice of the content of the police report, there is nothing in the report that puts Pariag at fault such that the Court might find that Plaintiff was aware of her potential cause of action against Pariag such that her Code of Civil Procedure § 474 doe amendment does not relate back to the date of Plaintiff's original filing. (See, e.g., RJN, Exh. C.) The Joint Stipulation also does not provide any evidence that Plaintiff knew anything more at the time of filing other than that Plaintiff was a passenger in Pariag's car at the time of the accident and Pariag was utilizing the Lyft application. (See RJN, Exh. D, p. 2, ¶ D.)

As

to the parties' arguments regarding Watts' Cross-Complaint, an "unreasonable delay in filing an amendment after actually acquiring [knowledge of facts giving rise to a cause of action] can bar a plaintiff's resort to the fictitious name procedure." (A.N., supra, 171 Cal.App.4th at p. 1065.) Here, the Court finds no unreasonable delay.

To the extent Watts' Cross-Complaint can be determined to have put Plaintiff on notice of any fault possibly attributable to Pariag, Plaintiff filed her doe amendment on March 17, 2026, only one month after Watts' Cross-Complaint was filed on February 17, 2026. (See RJN, Exh. B; compare RJN, Exh. E.)

In all, Plaintiff's argument that she was truly ignorant of facts giving rise to a cause of action against Pariag at the time of filing her original Complaint is persuasive. Plaintiff's original Complaint stated a valid cause of action against the now-identified Doe defendant Pariag (See Complaint ¶¶ 5, 15, 17, 19), Plaintiff was genuinely ignorant of Pariag's potential liability when the action was commenced because she believed only Watts was at fault, and the amended complaint is based on the same general set of facts as the original. Thus, Plaintiff's Doe amendment relates back to her original Complaint.

Accordingly,

Pariag's Demurrer on the grounds of statute of limitations is OVERRULED.[2]

E.

Pariag's

Demurrer to Watts' Cross-Complaint

Pariag demurs to Watts'

Cross-Complaint in its entirety on the grounds that each cause of action fails to state facts sufficient to constitute a cause of action and each cause of action is uncertain.

1.

"Derivative" Allegations

Pariag contends that Watts'

Cross-Complaint against him fails because its claims for indemnity, declaratory

relief, and apportionment of fault are wholly derivative of Plaintiff's allegations, which Pariag contends are barred against him by the statute of limitations. Pariag's Demurrer to the Cross-Complaint makes largely the same arguments as the Demurrer to the Complaint that the doe amendment of Pariag is improper and the relation back doctrine cannot apply to Plaintiff's claims against him. Pariag argues because he cannot be found liable under Plaintiff's Complaint, the Cross-Complaint's claims also fail. Pariag further argues that the Cross-Complaint makes merely legal conclusions and fails to state facts to withstand demurrer.

Watts argues in opposition that Plaintiff's claims are not time barred against Pariag and Pariag is also incorrect in his assertion that the Cross-Complaint is wholly derivative of Plaintiff's allegations. Watts argues that whether Plaintiff ever asserted claims against Pariag does not affect his right to assert his own claims for indemnity, declaratory relief, and apportionment of fault against Pariag.

First, the Court notes that it has found that Plaintiff's Complaint is not time-barred. (See Section D above.) Accordingly, Pariag's arguments as to that statute of limitations made with regard to the Cross-Complaint have been decided and are not further addressed here.

2.

Uncertainty and Failure to State Facts

Pariag also demurs to Watts' Cross-Complaint on the grounds that each cause of action is uncertain and fails to state facts sufficient to constitute a cause of action. The Court finds Pariag's arguments persuasive.

A plaintiff is required to plead only ultimate facts rather than evidentiary facts, and a complaint will be deemed adequate as long as it apprises the defendant of the factual basis for the claim. (*Birke v. Oakwood Worldwide* (2009) 169 Cal.App.4th 1540, 1548-1549.) However, a judge ruling upon a demurrer does not assume the truth of pleaded deductions, contentions, or conclusions of law or fact. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078.) Here, Watts' Cross-Complaint makes only conclusory allegations and fails to include any facts as to any of the stated causes of action for indemnification, declaratory relief, or

apportionment of fault. The most substantive of the allegations made in Watts' Cross-Complaint is "[t]he principal action alleges, among other things, conduct entitling plaintiff to compensatory damages against this cross-complainant. Cross-Complainant contends he/she is not liable for events and occurrences described in plaintiff's complaint." (See Cross-Complaint, ¶ 5.) The remainder of Watts' allegations are conclusions; no substantive facts are alleged. This is insufficient to apprise Pariag of the factual bases for Watts' claims.

Accordingly, Pariag's Demurrer to Watts' Cross-Complaint is SUSTAINED WITH LEAVE TO AMEND.

III.

CONCLUSION

The Court

OVERRULES Pariag's Demurrer to Plaintiff's Complaint. Pariag is ordered to file an Answer to Plaintiff's Complaint no later than October 9, 2026.

The Court

SUSTAINS Pariag's Demurrer to Watts' Cross-Complaint with 30 days' leave to amend. Watts' First Amended Cross-Complaint is ordered to be filed and served no later than October 9, 2026.

[1] Code of Civil Procedure § 335.1

sets forth the two-year statute of limitations for "[a]n action for assault, battery, or injury to, or for the death of, an individual caused by the wrongful act or neglect of another." (Code Civ. Proc., § 335.1.)

[2] Although Pariag identifies

separate and additional grounds for demurrer (fails to state facts sufficient to constitute a cause of action and uncertainty) in his notice of motion, no argument is made on those grounds in Pariag's points and authorities. Because no argument is made, the Court finds Pariag's demurrers on those grounds waived. (See *Trinity Risk Management, LLC v. Simplified Labor Staffing Solutions, Inc.* (2021) 59 Cal.App.5th 995, 1009 ("[F]ailure to offer reasoned analysis of [an] issue constitutes a waiver"); see also *In re Marriage of Falcone & Fyke* (2008) 164 Cal.App.4th 814, 830 ("The absence of cogent legal argument or citation to authority allows this court to treat the contentions as waived").)